

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

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**ISAAC OKOLI, MILLYCENT ATUEGWU,
VICTORIA OKOLI, G.O. (an infant whose parents
And legal guardians are co-plaintiffs Isaac Okoli and
Millycent Atuegwu), S.O. (an infant whose parents
And legal guardians are co-plaintiffs Isaac Okoli and
Millycent Atuegwu), and P.O. (an infant whose parents
And legal guardians are co-plaintiffs Isaac Okoli and
Millycent Atuegwu),**
Plaintiffs,

-against-

**THE CITY OF NEW YORK, NYPD OFFICER
TIMOTHY TERRILLION, Tax No. 952286, NYPD
SERGEANT THOMAS GAGLIARDI, Tax No.
930188, NYPD DETECTIVE SHAWN
HAYES, Tax No. 94770, NYPD DETECTIVE
LAWRENCE AVVENIRE, Shield No. 1049, and
JOHN and JANE DOE POLICE OFFICERS 1 to 9,**

Defendants.

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To the above named Defendant(s):

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve PLAINTIFFS a copy of your answer, or, if the complaint is served with this summons, to serve a Notice of Appearance, on PLAINTIFFS' attorney within twenty (20) days after service, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer PLAINTIFFS' complaint, judgment will be taken against you by default for the relief demanded therein.

PLAINTIFFS designate Queens County as the place of venue based on where PLAINTIFFS reside.

Dated: New York, NY
March 4, 2019

**Index No.: _____
SUMMONS**

**Plaintiffs designate
Queens County
place of trial.**

**Venue based on Plaintiffs'
residence at 22-29 Dix Ave,
Far Rockaway, NY 11691**



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Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NYPD OFFICER TIMOTHY TERRILLION, Tax No. 952286

NYPD SERGEANT THOMAS GAGLIARDI, Tax No. 930188

NYPD DETECTIVE SHAWN HAYES, Tax No. 94770

NYPD DETECTIVE LAWRENCE AVVENIRE, Shield No. 1049

JOHN and JANE DOE POLICE OFFICERS 1 to 9

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And legal guardians are co-plaintiffs Isaac Okoli and
Millycent Atuegwu), and P.O. (an infant whose parents
And legal guardians are co-plaintiffs Isaac Okoli and
Millycent Atuegwu),**
Plaintiffs,

**Index No.: _____
VERIFIED COMPLAINT**

-against-

**THE CITY OF NEW YORK, NYPD OFFICER
TIMOTHY TERRILLION, Tax No. 952286, NYPD
SERGEANT THOMAS GAGLIARDI, Tax No. 930188,
NYPD DETECTIVE SHAWN HAYES, Tax No. 94770,
NYPD DETECTIVE LAWRENCE AVVENIRE,
Shield No. 1049, and JOHN and JANE DOE POLICE
OFFICERS 1 to 9,**

Defendants.

-----X

Plaintiffs ISAAC OKOLI, MILLYCENT ATUEGWU, VICTORIA OKOLI, G.O. (an infant whose parents and legal guardians are co-plaintiffs Isaac Okoli and Millycent Atuegwu), S.O. (an infant whose parents and legal guardians are co-plaintiffs Isaac Okoli and Millycent Atuegwu), and P.O. (an infant whose parents and legal guardians are co-plaintiffs Isaac Okoli and Millycent Atuegwu) (collectively hereinafter "Plaintiffs") by and through their attorneys, Rehan Nazarali, Esq., and Ryan Lozar, Esq., upon information and belief, allege as follows:

PRELIMINARY STATEMENT

1. The United States Supreme Court has noted the “overriding respect for the sanctity of the home” from unlawful searches “has been embedded in our traditions since the origins of the Republic,” Payton v. New York, 445 U.S. 573 (1980), and is “implicit in the concept of ordered liberty,” Ingraham v. Wright, 430 651, 673 n.42 (1977). The United States and New York Constitutions have enshrined these principles and, as a general rule, require that police have a lawful warrant based on probable cause to enter, occupy and search a person’s home.
2. Yet on the morning of December 12, 2017, Defendants stormed and searched Plaintiffs’ family home with no such lawful warrant. In a scene that one would sooner expect to find in dystopian fiction than modern America, Defendants broke open Plaintiffs’ front door as the family of six inside—married parents Isaac and Millycent, and their four children—began an otherwise ordinary school day. Intruding Defendants held the petrified family at gunpoint, used unnecessary physical force on certain members of the family, ransacked and broke family furniture, and more.
3. Defendants found no contraband. This is no wonder, given that government records show that *Defendants had meant to raid an apartment in the building next door*. Defendants had stormed and searched the wrong home. Once Defendants realized their misconduct, they tried to cover it up, further violating Plaintiffs’—and, in particular, Mr. Okoli’s—rights in the process.
4. This is a civil rights, common law, and tort action in which Plaintiffs seek relief for the violation of their rights secured by federal and state laws: the laws of the State of New York; the New York State Constitution; Title 42 of the United States Code, Sections 1983 and 1988; and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.
5. During the December 12, 2017, incident, Defendants City of New York, NYPD Officer Timothy Terrillion, NYPD Sergeant Thomas Gagliardi, NYPD Detective Shawn Hayes, NYPD Detective Lawrence Avvenire, John and Jane Doe Police Officers 1 to 9, and other, as yet unknown, members of the New York City Police Department (“NYPD”) subjected Plaintiffs to, among other things: false arrest and imprisonment, unreasonably excessive detention, unlawful search and seizure, excessive force, assault and battery, malicious prosecution, abuse of process, evidence fabrication and deprivation of fair trial rights, gross negligence, intentional and negligent infliction of emotional distress, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiffs seek compensatory and punitive damages from the individual Defendants, compensatory damages from the municipal defendant, declaratory relief,

an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

6. Plaintiffs herein demand jury trial with respect to the related claims and causes of action herein brought in this Court against Defendants, and seeking damages jointly and severally as against each Defendant on each claim or cause of action in an amount in excess of the jurisdictional threshold of lower courts.

JURISDICTION & VENUE:

7. On or about June 14, 2018, Plaintiffs served upon Defendant City of New York a Notice of Claim setting forth the names and addresses of Plaintiffs, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed. With that served claim, Plaintiffs filed a petition seeking leave from this Court to deem it timely filed. Decision on that fully briefed petition is pending with this Court. See Okoli, et al., v. City of NY, et al., Index No. 709208/2018.
8. Defendant City of New York requested hearings, pursuant to 50-H of the General Municipal Law for the six Plaintiffs. Those 50-H hearings were performed as to all six Plaintiffs on or about January 3 and 4, 2019.
9. More than 30 days have elapsed since Plaintiffs' demands and/or claims were presented to Defendant City of New York for adjustment and/or payment thereof, and Defendant has neglected and/or refused to make any adjustment or payment.
10. That this action is being commenced within one year and ninety days of the date of the occurrence herein described.
11. Venue is proper in the Supreme Court of the State of New York, Queens County, because the acts in question occurred in the State of New York, Queens County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State of New York, Queens County.

PARTIES:

12. That the Plaintiffs are presently residents of Queens County in the State of New York.
13. At the time of the incident, all Plaintiffs were residents of the County of Queens in the State of New York, specifically at 22-29 Dix Avenue, Apt. 1A, Far Rockaway, NY 11691.

14. Plaintiff Isaac Okoli and Plaintiff Millycent Atuegwu have been married for more than twenty years and have four children.
15. Plaintiff Isaac Okoli is sixty years old. He studied business administration at Touro College, worked for many years in pest control, and is retired.
16. Plaintiff Millycent Atuegwu is forty-four years old and is a licensed practical nurse. She works as a health care aide.
17. Plaintiff Isaac Okoli and Plaintiff Millycent Atuegwu's daughter, Plaintiff Victoria Okoli, attends Borough of Manhattan Community College and was twenty-one years old at the time of the incident. At all relevant times she lived with her parents, little brothers and little sister (also Plaintiffs in this action) at 22-29 Dix Avenue.
18. Plaintiff Isaac Okoli and Plaintiff Millycent Atuegwu are the parents and legal guardians of son Plaintiff G.O., who at the time of the incident was sixteen years old and who remains a minor; son Plaintiff S.O., who at the time of the incident was fourteen years old and who remains a minor, and daughter Plaintiff P.O., who at the time of the incident was ten years old and who remains a minor. Plaintiffs G.O., S.O. and P.O. attend school. At all relevant times, Plaintiffs G.O., S.O. and P.O. resided with their parents and their older sister Victoria Okoli (also Plaintiffs in this action) at 22-29 Dix Avenue.
19. Upon information and belief, that at all times, Defendant CITY OF NEW YORK (hereinafter "City") was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
20. Upon information and belief, that at all relevant times hereinafter, the Defendant City and its agents, servants and employees operated, maintained and controlled the City of New York Police Department (hereinafter "NYPD"), and all the police officers thereof, including Defendants NYPD Officer Timothy Terrillion ("Terrillion"), NYPD Sergeant Thomas Gagliardi ("Gagliardi"), NYPD Detective Shawn Hayes ("Hayes"), NYPD Detective Lawrence Avvenire ("Avvenire") and John and Jane Doe Police Officers 1 to 9 ("Does"), on information and belief, Terrillion, Gagliardi, Hayes, Avvenire and Does were all assigned to the 101st Precinct and/or NYPD Narcotics Borough Queens South at relevant times.

21. Upon information and belief, that at all times, the defendant City, its agents, servants and employees operated, maintained and controlled the NYPD, and all the police officers thereof at all relevant times, including Terrillion, Gagliardi, Hayes, Avvenire and Does.
22. Upon information and belief, at all relevant times hereinafter mentioned, and on or prior to December 12, 2017, Defendants Terrillion, Gagliardi, Hayes and Avvenire were employed by the Defendant City as police officers.
23. Upon information and belief, at all relevant times hereinafter mentioned, and on or prior to December 12, 2017, Defendant Does 1 to 9 (said names being fictitious, the intent of Plaintiffs being to designate all police officers involved or present at the scene of the incident), were employed by the Defendant City as police officers though their identities and numbers are presently unknown.
24. Defendant Officers as herein named and as discovery may identify are sued in both their individual and official capacities as Plaintiffs' respective federal claims and state causes of action demand.
25. That James P. O'Neill (hereinafter "O'Neill) was and still continues as the Police Commissioner of the Defendant City's NYPD and as such issues policies, procedures, and protocols followed by his officers.
26. That upon information and belief O'Neill and still other policymakers for the Defendant City and in particular for its NYPD, have at all relevant times expressly or implicitly endorsed policies and/or customs which, through action or inaction, condone, allow and turn a blind eye to NYPD officer misconduct. This is either through unreasonably insufficient action or unreasonable inaction in response to known and knowable institutional and/or individual-employee misconduct patterns. These patterns are known or knowable from, among other sources, municipal, departmental, precinct or other reports and data; news reports; officer misconduct complaints and the outcome of related investigations when they occur in the form of findings, recommendations, prosecutions, sanctions or other responsive events; notice of claim and litigation data as available from administrative and/or judicial proceedings; and more.

STATEMENT OF FACTS

27. Government records produced in response to FOIL request show that in early December 2017, Defendants Avvenire, Gagliardi and other Defendants investigated a man suspected of selling

narcotics at 22-37 Dix Avenue (hereinafter “subject building”), Far Rockaway, NY 11691, at Apt. 1A (hereinafter “subject address”).¹

28. Since 2013, presently, and at all relevant times—including December 2017—Plaintiffs resided at 22-29 Dix Avenue (hereinafter “Plaintiffs’ building”) in Apt. 1A (hereinafter “Plaintiffs’ home”).
29. Plaintiffs’ building is the building next door to the subject building. Plaintiffs’ home was not, is not, and never has been at the subject address.
30. Pursuant to Defendants’ investigation at the subject address, which made use of a confidential informant (“CI”), Defendants claim that the CI reported to Defendants that the CI made a positive buy of a controlled substance from a man. The man’s physical description, age and the subject address led Defendants to police records showing a man known to them as a recidivist with a narcotics arrest history residing at the subject address (“the investigation target”).
31. From Defendants’ records, the CI positively identified the investigation target as the individual that s/he encountered at the subject address.
32. No one matching the investigation target’s physical description, age or other descriptor resided at Plaintiffs’ home at any time.
33. In connection with Defendants’ investigation, Defendants planned to raid and search the subject address. Instead, on the incident date, Defendants unconstitutionally, recklessly and negligently raided and searched Plaintiffs’ home, and not the subject address. Defendants not only got the wrong address, they were in the wrong building.
34. It was on December 12, 2017, Defendants broke into, raided, occupied and searched the wrong place—Plaintiffs’ home. This occurred on a Tuesday morning at approximately 6:00 a.m.
35. At the time of Defendants’ raid, Plaintiff S.O. and Plaintiff P.O. were already out of bed and getting ready for school. Plaintiffs Isaac Okoli and Millycent Atuegwu were in their bedroom (“Okoli master bedroom”), Plaintiff Victoria Okoli was in hers (shared with P.O., hereinafter the “Okoli girls’ bedroom”), and Plaintiff G.O. was in his (shared with S.O., hereinafter the “Okoli boys’ bedroom”).

¹ Through discovery Plaintiffs will be able to identify which Defendant(s) took which action(s) referenced in pleadings with greater specificity.

36. Defendants broke open the door to Plaintiffs' family home at 22-29 Dix Avenue, Apt. 1A, brandishing assault weapons. Certain Defendants wore SWAT-style masks and gear.
37. Plaintiff P.O. (then ten years old) fearfully ran into her parents' bedroom as Defendants broke into the home. Intruding Defendants encountered Plaintiff S.O. first. They held him at gunpoint in the living room, while others fanned throughout the rest of Plaintiffs' home.
38. Plaintiffs Isaac Okoli estimates that up to fourteen officers stormed and searched Plaintiffs' home during the incident.
39. In the Okoli master bedroom, Defendants held Plaintiff Isaac Okoli, Plaintiff Millycent Atuegwu and ten-year-old Plaintiff P.O. at gunpoint.
40. Plaintiff Isaac Okoli had a CPAP machine on his face for his sleep apnea. A Defendant roughly pulled the CPAP from the unsuspecting Mr. Okoli's face. Defendants used undue force to grab Mr. Okoli, throw him upside down, twist his arms and handcuff him. In the process Mr. Okoli suffered injuries including to his back, shoulders, arms and wrists.
41. Plaintiff Millycent Atuegwu was also injured during Defendants' raid. Initially, she thought the Defendants holding her at gunpoint were terrorists and not police, panicked, and injured her hip, leg and back when she fell out of bed to the hard wood floor in response to shouted orders.
42. In the Okoli girls' room, Plaintiff Victoria Okoli had jumped from her bed and hid in her closet partially dressed when she heard Defendants storming Plaintiffs' home. When Plaintiff Victoria Okoli looked out from the closet, she saw a Defendant pointing a gun at her. Plaintiff Victoria Okoli was then obliged to crawl into her parents' room and lie on the floor with Isaac, Millycent and P.O.
43. In the Okoli boys' room, Defendants pointed a gun at G.O. and ordered him to get down on the floor from his bed. Before G.O. could comply, Defendants roughly dragged him out of bed onto the floor and handcuffed him. Due to this and later force, Defendants caused injury to G.O.'s shoulder.
44. As Defendants held G.O. handcuffed and face down on the floor of the Okoli boys' room, they repeatedly asked him his age and G.O. repeatedly, truthfully replied he was sixteen. Defendants repeatedly told the frightened, handcuffed boy that he was lying, on information and belief because

G.O. did not match the information Defendants had about the investigation target—who was estimated to be in his thirties—and no one else in Plaintiffs' home did, either.

45. Defendants brought in a contraband-sniffing dog which did not alert to any contraband in the home.
46. Eventually, Defendants moved all Plaintiffs—some handcuffed—to the living room. It was here that a female Defendant allowed the partially-dressed Plaintiff Victoria Okoli, to put on additional clothes to cover herself.
47. Plaintiffs heard certain Defendants state that they were in the wrong place. Despite this, the negative dog search and more, Defendants' continued their occupation and search of Plaintiffs' home when the misconduct—which should never have happened at all—should have been terminated.
48. At no point during the unlawful search of Plaintiffs' home did Defendants find any contraband of any sort.
49. Defendants attempted to cover up their erroneous, unconstitutional and tortious invasion, occupation and search of Plaintiffs' home by fabricating an arrest charge against Plaintiff Isaac Okoli.
50. Though no contraband was found in Plaintiffs' home during the unlawful search, Defendants arrested Plaintiff Isaac Okoli and took him to the 101st Precinct, where they falsely accused him of criminal possession of a controlled substance ("CPCS") based on Defendants' fabrication of evidence that they allegedly found a small vial of cocaine during the unlawful search of Plaintiffs' home. This was not true, and Defendants fabricated it.
51. At the 101st Precinct, Defendants including Avvenire, Terrillion, Gagliardi and Hayes were involved in processing Plaintiff Isaac Okoli's known, false arrest by serving him with a Desk Appearance Ticket ("DAT"). Later, these same Defendants maliciously caused a criminal proceeding to be commenced against Plaintiff Isaac Okoli without probable cause by forwarding the false charge and related fabricated information to the Queens County District Attorney's Office.
52. Later on the incident date, Plaintiff Victoria Okoli received a text message from a Defendant on the incident scene asking whether she and her father, Plaintiff Isaac Okoli, were okay. This stands with other evidence of Defendants' contemporaneous realization that they had raided Plaintiffs' home in error.

53. When Plaintiff Isaac Okoli appeared in court on January 19, 2018, to fight the CPCS DAT, he found received a letter stating that the Queens County District Attorney's Office declined to prosecute and dismissed the DAT CPCS charge against Mr. Okoli.
54. Defendants arrested another person close in time to their unlawful search of Plaintiffs' home and false arrest of Plaintiff Isaac Okoli. On information and belief, this person was Defendants' actual, intended target and from the operation's subject address in the building next door to Plaintiffs' home pursuant to Defendants' investigation using a CI. On information and belief, after Defendants realized their error in raiding, occupying and searching Plaintiffs' home, they may have raided, occupied and searched their actual intended target's home in the building next door as well.
55. Some Plaintiffs suffered physical injuries as a result of the incident. These included, but are not limited to, Plaintiff Isaac Okoli's injuries to his back, shoulders, arms, hands and legs, Plaintiff Millycent Atuegwu's injuries to her back, hip and leg, and G.O.'s injury to his shoulder.
56. Plaintiffs suffered property damages as a result of the incident. This included, but was not limited to, their door, which Defendants never repaired. Plaintiffs' furniture was also damages, and the contents of their home in disarray.
57. Plaintiffs suffered psychological and emotional trauma and injuries as a result of the incident. These included, but are not limited to, depression, anxiety, fear, paranoia, feelings of unsafety while at home, distraction from work and school (with Plaintiffs suffering difficulties and lower grades at school as a result), flashbacks, sleeplessness, night sweats, nightmares and embarrassment. For some Plaintiffs, these emotional and psychological disturbances manifested physically, for example as headaches or overeating.
58. Plaintiffs' right of privacy in their home was violated as a result of the unlawful search. Plaintiff Victoria Okoli's privacy was also violated as a result of the unreasonable manner of search by virtue of Defendants leaving her partially undressed during the incident until eventually moved to the living room.
59. Plaintiffs suffered still other damages as a result of the incident, which include loss of liberty for the time that they were unlawfully detained during the period of unlawful search. Plaintiff Isaac Okoli's unlawful deprivation of liberty was longer still, as he was held in custody during arrest processing and appeared in court in connection with the fabricated CPCS arrest charge.

60. Plaintiffs suffered reputational harm as a result of the incident. These included their neighbors knowing about the erroneous raid at Plaintiffs' home, which Plaintiffs believe had the natural consequence of negatively impacting the way their community perceives them and their family. As for Plaintiff Isaac Okoli, he suffered the indignity of having his family witness Defendants falsely arrest him from the family home on a fabricated charge intended to hide Defendants' own error.
61. After the incident, Plaintiffs Isaac Okoli and Millycent Atuegwu filed a complaint with the Civilian Complaint Review Board, which agency performed a months-long investigation. They also went to their congressperson's office in Far Rockaway to report the incident.
62. That the incident evinced a grave pattern of serious legal and constitutional violations all of which gave rise to this complaint and the several causes of action subsumed thereunder, and all of which took place and arose in County of Queens, City and State of New York.
63. At no time during the events described above did the Defendants have probable cause or any other constitutional or statutory privilege for any of the complained-of acts.
64. That the actions of Defendants were intentional, malicious, reckless, outrageous and in bad faith, thus giving rise to punitive damages as to them.

PLAINTIFFS' FIRST CAUSE OF ACTION
(FALSE ARREST, UNREASONABLY EXCESSIVE DETENTION AND UNLAWFUL
SEARCH AND SEIZURE UNDER FEDERAL LAW):

65. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
66. Defendants unreasonably and falsely arrested Plaintiffs, detained them for an unreasonably excessive period of time, and unlawfully searched and seized them and their home knowing that they were without constitutional privilege including but not limited to a properly issued warrant correctly naming Plaintiffs or their home as its target, without other constitutional privilege such as probable cause or reasonable suspicion, and without consent.
67. Defendants' actions were taken under color of law, and Individual Defendants' failure to intervene was also objectively unreasonable and caused Plaintiffs' damages.
68. Accordingly, Defendants are liable to Plaintiffs for false arrest, unreasonably excessive detention, unlawful search and seizure under 42 USC 1983, and the Fourth, Fifth and Fourteenth Amendments to the US Constitution.

PLAINTIFFS' SECOND CAUSE OF ACTION
(FALSE ARREST, UNREASONABLY EXCESSIVE DETENTION AND UNLAWFUL
SEARCH AND SEIZURE UNDER STATE LAW):

69. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
70. Defendants unreasonably and falsely arrested Plaintiffs, detained them for an unreasonably excessive period of time, and unlawfully searched and seized them and their home knowing that they were without constitutional privilege including but not limited to a properly issued warrant correctly naming Plaintiffs or their home as its target, without other constitutional privilege such as probable cause or reasonable suspicion, and without consent.
71. Accordingly, Defendants are liable to Plaintiffs for false arrest, unreasonably excessive detention and unlawful search and seizure under New York State law.

PLAINTIFFS' THIRD CAUSE OF ACTION
(EXCESSIVE FORCE UNDER FEDERAL LAW):

72. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
73. The Individual Defendants' use of force upon Plaintiffs, as herein described and performed under color of law, and the Individual Defendants' failure to intervene, was objectively unreasonable and caused Plaintiffs pain and injury.
74. Accordingly, Defendants are liable to Plaintiffs for using unreasonable and excessive force, pursuant to 42 USC Section 1983, and the Fourth, Fifth and Fourteenth Amendments to the US Constitution.

PLAINTIFFS' FOURTH CAUSE OF ACTION
(ASSAULT UNDER STATE LAW):

75. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
76. Among other things as described above, Defendants' search and seizure, and use of force against Plaintiffs placed them in fear of imminent harmful and offensive physical contacts.
77. Accordingly, Defendants are liable to Plaintiffs under New York State law for assault.

PLAINTIFFS' FIFTH CAUSE OF ACTION
(BATTERY UNDER STATE LAW):

78. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
79. Among other things as described above, Defendants' search and seizure, and use of force against Plaintiffs were illegal and unlawful physical contacts.
80. Accordingly, Defendants are liable to Plaintiffs under New York State law for battery.

PLAINTIFFS' SIXTH CAUSE OF ACTION
(FAILURE TO SUPERVISE):

81. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
82. The supervisor Defendants are liable to Plaintiffs because they supervised the subordinate Individual Defendants concerning the above-mentioned unlawful acts against Plaintiffs, and approved their unlawful actions.

PLAINTIFFS' SEVENTH CAUSE OF ACTION
(NEGLIGENT SUPERVISION, HIRING, MONITORING, TRAINING AND RETENTION OF
UNFIT EMPLOYEES UNDER STATE LAW):

83. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
84. Defendant City of New York is liable to Plaintiffs because the occurrence and injuries sustained by Plaintiffs, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of defendant City of New York, and the NYPD, its agents, servants and/or employees, as set forth above, without provocation on the part of plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers.

PLAINTIFFS' EIGHTH CAUSE OF ACTION
(INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS UNDER
STATE LAW):

85. That by virtue of the occurrence, Defendants –individually and/or by their agents, servants and/or employees – negligently and/or intentionally inflicted emotional harm upon plaintiff.
86. The Defendants' actions against Plaintiffs were extreme and outrageous and caused Plaintiffs severe emotional distress.

87. The Defendants breached a duty owed to Plaintiffs that either unreasonably endangered Plaintiffs' physical safety, or caused the Plaintiffs to fear for their own safety.

PLAINTIFFS' NINTH CAUSE OF ACTION
(NEGLIGENCE, GROSS NEGLIGENCE UNDER STATE LAW):

88. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
89. Defendants are liable to Plaintiffs because Defendants owed Plaintiffs a cognizable duty of care as a matter of law, and breached that duty.

PLAINTIFFS' TENTH CAUSE OF ACTION
(ABUSE OF PROCESS UNDER FEDERAL LAW):

90. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
91. Defendants are liable to Plaintiff Isaac Okoli because they issued process with intent to harm him without justification, and perverted use of otherwise legal process to obtain a collateral objective. Defendants' actions were under color of law and in violation of 42 USC Section 1983 and the U.S. Constitution; Individual Defendants also failed to intervene to prevent the malicious abuse of process.

PLAINTIFFS' ELEVENTH CAUSE OF ACTION
(ABUSE OF PROCESS UNDER STATE LAW):

92. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
93. Defendants are liable to Plaintiff Isaac Okoli because they issued process with intent to harm him without justification, and perverted use of otherwise legal process to obtain a collateral objective in violation of New York State law.

PLAINTIFFS' TWELFTH CAUSE OF ACTION
(MALICIOUS PROSECUTION UNDER FEDERAL LAW):

94. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
95. Defendants are liable to Plaintiff Isaac Okoli because, acting with malice, they commenced and continued a criminal proceeding against him without probable cause by knowingly, intentionally, and maliciously providing false statements to prosecutors and/or the criminal court, which falsely alleged that Plaintiff Isaac Okoli committed a criminal offense.

96. Individual Defendants lacked probable cause to believe the above-described malicious prosecution could succeed.
97. Individual Defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-described malicious prosecution.
98. Defendants' actions caused Plaintiff Isaac Okoli an actionable liberty restraint post-commencement of the criminal proceeding including his compelled court appearance relating to the false criminal charge.
99. The criminal proceeding commenced and continued by Defendants terminated favorably to Plaintiff Isaac Okoli.
100. Defendants' actions were under color of law and in violation of 42 USC Section 1983 and the U.S. Constitution; other Defendants failed to intervene to prevent the malicious prosecution despite opportunity to do so.

PLAINTIFFS' THIRTEENTH CAUSE OF ACTION
(MALICIOUS PROSECUTION UNDER STATE LAW):

101. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
102. Defendants are liable to Plaintiff Isaac Okoli because, acting with malice, they commenced and continued a criminal proceeding against him without probable cause by knowingly, intentionally, and maliciously providing false statements to prosecutors and/or the criminal court, which falsely alleged that Plaintiff Isaac Okoli committed a criminal offense.
103. Individual Defendants lacked probable cause to believe the above-described malicious prosecution could succeed.
104. Individual Defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-described malicious prosecution.
105. Defendants' actions caused Plaintiff Isaac Okoli an actionable liberty restraint post-commencement of the criminal proceeding including his compelled court appearance relating to the false criminal charge.
106. The criminal proceeding commenced and continued by Defendants terminated favorably to Plaintiff Isaac Okoli.
107. Defendants' actions were in violation of New York State law.

PLAINTIFFS' FOURTEENTH CAUSE OF ACTION
(EVIDENCE FABRICATION/DEPRIVATION OF FAIR TRIAL UNDER FEDERAL LAW):

108. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.

109. Defendants are liable to Plaintiff Isaac Okoli because they created false information as to him and forwarded it to prosecutors. The fabricated evidence would have been material to a jury, as it would influence a jury's decision if a jury were to consider it, and Defendants' forwarding of the material fabricated evidence to prosecutors caused Plaintiff Isaac Okoli liberty restraint.

110. Defendants' actions were under color of law and in violation of 42 USC Section 1983 and the U.S. Constitution; Individual Defendants also failed to intervene to prevent the known evidence fabrication and deprivation of Plaintiff Isaac Okoli's fair trial right.

PLAINTIFFS' FIFTEENTH CAUSE OF ACTION
(EVIDENCE FABRICATION AND DUE PROCESS VIOLATION UNDER STATE LAW):

111. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.

112. Defendants are liable to Plaintiff Isaac Okoli for violating his due process rights and right to a fair trial under New York State law as a result of their fabricating of material evidence against Mr. Okoli as detailed herein.

PLAINTIFFS' SIXTEENTH CAUSE OF ACTION
(MONELL CLAIM AGAINST DEFENDANT CITY OF NEW YORK):

113. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.

114. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by Plaintiffs.

115. Defendant City of New York's complained-of policy, practice and/or custom may be characterized through affirmative but unreasonably deficient action to known or knowable misconduct-pattern concerns or through inaction to the same.

116. Upon information and belief, Defendant City of New York, at all relevant times, was aware that the Defendants are unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

117. Upon information and belief, Defendant City was aware that Defendants' assigned Precincts and Commands at issue here were the subject of misconduct allegations disproportionate in number or substance from comparator precincts and commands, demonstrating a pattern of unconstitutional law enforcement practices there requiring additional training, retraining, supervision, discipline, monitoring or other reasonable managerial action in response to the obvious risks that the patterns posed to future rights violations.
118. Nevertheless, Defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, Defendant City of New York failed to adequately investigate prior complaints filed against the Individual Defendants and/or misconduct concerns that municipal and other data collection made known or knowable about Defendants and/or the law enforcement practices and operations raised by the complained-of actions here at relevant Precinct and/or Command.
119. Further, Defendant City of New York was aware prior to the incident that the Defendants and non-party Defendant colleagues (in continuation of its illegal custom, practice and/or policy) would violate—based on pretext, productivity goals and/or indifference—the rights of individuals in minority and low-income neighborhoods and in particular in the Precinct and Command jurisdictions at issue here.
120. In addition, the following are municipal policies, practices and customs: (a) arresting and/or searching innocent individuals and/or their homes, based on a pretext, in order to meet productivity goals; (b) fabricating evidence against individuals; (c) using excessive force against individuals.

PLAINTIFFS' SEVENTEENTH CAUSE OF ACTION
(STATE LAW RESPONDEAT SUPERIOR CLAIM AGAINST CITY OF NY):

121. The Plaintiffs hereby incorporate by reference each and every other paragraph of this Complaint as though fully pled and re-alleged herein.
122. The Individual Defendants were acting within the scope of their employment as NYPD Officers when they committed the above-described acts against Plaintiffs.
123. The Defendant City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, Plaintiffs demand judgment against Defendants on each one of the above-described claims and causes of action, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated claims and causes of action against all Defendants; punitive damages in an amount to be determined at trial as and for the above-stated causes of action against the individual defendants; together with costs and disbursements of this action and legal fees pursuant to 42 U.S.C. § 1988; and such other and further relief as this Court may deem just, fair and proper under the circumstances. In so demanding, Plaintiffs respectfully request trial by jury on their claims and causes of action.

Dated: New York New York
March 4, 2019



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ATTORNEY'S VERIFICATION

RYAN LOZAR, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the LAW OFFICE OF RYAN LOZAR, PC. I have read the annexed VERIFIED COMPLAINT and know the contents thereof, and the same is true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon records in my files including, but not limited to, Plaintiffs' sworn 50h testimonies.

DATED: New York, New York
March 4, 2019



Ryan Lozar, Esq.